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Case Number: 25STCV17942 Hearing Date: August 13, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

JOANNA MISSRY,

Plaintiff,

vs.

California Physicians' Service doing business as Blue Shield of
California, et al.,

Defendants.

Case No.:

25STCV17942

Hearing Date:

August 13, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANTS CALIFORNIA PHYSICIANS' SERVICE dba BLUE SHIELD OF CALIFORNIA
AND LAURA RAMONETT'S MOTION FOR ATTORNEY FEES PURSUANT TO CODE OF CIVIL PROCEDURE SECTION
425.16(C)

Background

On June 20, 2025,

Plaintiff Joanna Missry ("Missry") filed a complaint against Defendants California Physicians' Service dba Blue Shield of California ("Blue Shield") and Laura Ramonett (jointly, "Defendants"), alleging nine causes of action for (1) intentional interference with prospective economic advantage; (2) negligent interference with prospective economic advantage; (3) defamation; (4) defamation per se; (5) libel per se; (6) injunctive relief; (7) declaratory relief; (8) violation of Business and Professions Code; and (9) intentional infliction of emotional distress.

On January 28, 2026, the

Court granted Defendants' anti-SLAPP motion in its entirety, for the first, second, third, fourth, fifth, and ninth causes of action of Missry's complaint. The Court also sustained Defendants' demurrer, with leave to amend, as to the sixth, seventh, and eighth causes of action.

On February 17, 2026,

Missry filed the operative first amended complaint, alleging three causes of action for (1) violation of Business and Professions Code; (2) declaratory relief; and (3) injunctive relief.

Defendants now move for attorney fees, pursuant to Code of Civil Procedure section 425.106, for prevailing on their anti-SLAPP motion. Missry opposes. Defendants replied.

Legal Standard

The anti-SLAPP statute (strategic lawsuits against public participation) protects parties from frivolous lawsuits: "you have a right not to be dragged through the

courts because you exercised your constitutional rights.” (People ex rel. Lockyer v. Brar (2004) 115 Cal.App.4th 1315, 1317.) If a defendant prevails on their anti-SLAPP motion, they are entitled to attorney fees and costs as a matter of right. (Code Civ. Proc., § 425.16, subd. (c)(1).) An award of fees may also include “the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1141.)

“[A] party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of a trial court.” (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 340 (Mann).) “Where the results of the motion are ‘minimal’ or ‘insignificant’ a court does not abuse its discretion in finding the defendant was not a prevailing party.” (Ibid.)

Discussion

As the prevailing Defendants in the special motion to strike Missry’s complaint, Defendants request attorney fees in the amount of \$35,815 and costs in the amount of \$170.48.

A. Staying Proceedings Pending Appeal

As a preliminary matter, Missry filed an appeal. Due to the appeal, she requests “a narrow, discretionary case-management deferral of the amount determination until the appellate disposition clarifies whether the underlying anti-SLAPP ruling remains intact.” (Opp., 4:16-17.) Missry contends that “[d]eferral would promote judicial economy. If the Court of Appeal reverses or materially modifies the underlying anti-SLAPP order, the basis or scope of Defendants’ statutory fee entitlement may change.” (Opp., 8:9-10.)

In reply, Defendants assert that “delaying a ruling on Defendants’ Motion is both unnecessary and unwarranted,” because “doing so here would not promote judicial efficiency and would only subject the Court to a needless future hearing.” (Reply, 1:24-26.)

Defendants assert that “because enforcement and collection of any monetary award can be properly stayed during the pendency of the appeal, there is no prejudice against the parties in issuing a ruling now.” (Reply, 2:3-5.)

The Court finds it

unnecessary to stay the instant motion because “the trial court ‘retains

jurisdiction to entertain a motion for attorney fees despite an appeal[.]” (Robertson v. Rodriguez (1995) 36 Cal.App.4th 347, 360.) Staying proceedings for the

motion for attorney fees would unnecessarily cause delay, requiring the parties

to re-appear and the Court to review the instant matter again at a later date. Thus,

hearing the merits of the instant motion now promotes judicial economy. Additionally,

as Defendants noted, a money award may be stayed during the pendency of an

appeal. Although normally “the perfecting of an appeal shall not stay

enforcement of the judgment or order in the trial court if the judgment or

order is for ... [m]oney” (Code Civ. Proc., § 917.1,

subd. (a)(1)), an individual may provide a “bond or undertaking ... to obtain

a stay of enforcement of a judgment or order pending disposition of the appeal.”

(Dowling v. Zimmerman (2001) 85 Cal.App.4th 1400, 1429.)

This allows Missry, if she so wishes, to post an undertaking pursuant to Code of Civil Procedure section 917.1 to delay payment

of the fees pending the appeal of the anti-SLAPP motion. Accordingly, the Court

finds that staying the hearing on the instant motion is unnecessary and

addresses the merits below.

B. The Attorney Fees and Costs Sought are

Reasonable

Defendants’ counsel attaches

a declaration in support of the instant motion. Counsel attests, inter alia,

that she has “defended Blue Shield for 20 years and I am familiar with their

business practices and procedures.” (Hernandez Decl., ¶ 3.) “Following receipt

of service of the Summons and Complaint in this action, Blue Shield retained my

firm’s services to defend against Plaintiff Joanna Missry’s claims. After

evaluating the case, it was my recommendation to respond to the Complaint with

a special motion to strike six of the nine causes of action.” (Hernandez Decl.,

¶ 4.) “From July 2025 through January 31, 2026, Defendants have incurred

\$35,815.00 in attorneys’ fees and \$170.48 in costs recoverable under Code of Civil Procedure § 425.16(c)(1). The fees incurred by

Defendants include research and analysis prior to filing the Motion, drafting

of the Motion, review and analysis of Plaintiff’s Opposition, drafting

Defendants’ Reply to Plaintiff’s Opposition, evidentiary objections and other

supporting papers, preparing for and attending the hearing on the Motion. The attorneys primarily responsible for the preparation and drafting of the special motion to strike include myself, senior associate Thomas Worger, and associate Constantino Raya. The costs incurred reflect the fees for filing the briefs in support of the Motion.” (Hernandez Decl., ¶ 6.)

Regarding the time

expended moving for and defending the special motion to strike, Defendants’ counsel attests, “[b]ased on my experience, Hernandez Laska managed and litigated this case both efficiently and economically, with a proper distribution of responsibility among the various professionals who worked on the matter. The total amount of attorney time billed to Defendants, 70.4 hours, was both reasonable and necessary in light of the nature of the case. This matter required extensive research and preparation to develop the arguments necessary to address Plaintiffs’ numerous causes of action and legal theories.” (Hernandez Decl., ¶ 10.) Counsel explains that they “conducted targeted research on each cause of action to develop a legal theory consistent with Code of Civil Procedure Section 47(c). This effort, which included analyzing California regulatory law regarding Plaintiff’s licensing and certifications to disprove ‘falsity’ as to each cause of action, was essential to successfully striking the defamation claim and other related causes of action.” (Hernandez Decl., ¶ 11.) Additionally, “[r]esearching and drafting the Motion required 39.6 hours to complete. Reviewing Plaintiff’s Opposition and researching and drafting Defendants’ Reply to address Plaintiff’s specific legal theories, and researching and drafting a request for judicial notice and evidentiary objections to Plaintiff’s supporting declaration required 25.4 hours to complete.” (Hernandez Decl., ¶ 12.) Defendants’ counsel explains that “prepar[ing] for the hearing required 3.7 hours which entailed preparing an outline for oral arguments and reviewing cases cited in the briefs. Mr. Worger and I attended the hearing on January 28, 2026, but my time preparing and attending the hearing is not included in this Motion. The total time Mr. Worger spent in Court for the hearing totaled 1.7 hours with counsel for each party making arguments as to the merit of the Motion.” (Hernandez Decl., ¶ 13.)

Three attorneys worked

on this motion. First is Defendants’ lead counsel, Ileana M. Hernandez, who attests that she “graduated from the University of California, Los Angeles in 1995 and then earned my law degree from the University of Southern California Law School in 1998,” and has “worked as a litigation attorney in Los Angeles, California for the past 27 years at both a large firm and now boutique firm. My

billing rate for this matter is \$650.00 per hour.” (Hernandez Decl., ¶¶ 2, 7.) She attests that “Thomas Worger is a senior associate at Hernandez Laska, LLP. Mr. Worger is a graduate of the University of California, San Diego, received a Masters Degree from Columbia University, and earned his law degree from the University of California, Irvine School of Law in 2015. Mr. Worger was responsible for drafting the majority of the Motion, the Reply to Plaintiff’s opposition to the Motion, and prepared for and argued Defendants’ Motion at the hearing on January 28, 2026. Mr. Worger billed at a rate of \$495.00 per hour.” (Hernandez Decl., ¶ 8.) Lastly, Defendants’ counsel explains that “Constantino Raya is an associate at Hernandez Laska, LLP. Mr. Raya is a graduate of the University of Kansas and earned his law degree from Tulane University School of Law in 2021. Mr. Raya assisted in researching the merits of the six causes of action at issue in the Motion. Mr. Raya conducted research and prepared the initial analysis of the Motion and assisted in researching and developing the arguments raised in Defendants’ Reply to Plaintiff’s Opposition. Mr. Raya was also responsible for researching and drafting the evidentiary objections, request for judicial notice, and proposed orders. Mr. Raya billed at a rate of \$450.00 per hour.” (Hernandez Decl., ¶ 9.)

Regarding the reasonableness of the fees sought, Defendants’ counsel explains that “Hernandez Laska billed 70.4 hours for \$35,815 to Defendants, which are consistent with the prevailing community rates. I have undertaken a careful review of the invoices on this matter to eliminate duplicative or irrelevant time entries.” (Hernandez Decl., ¶ 14.) “In support of the accompanying motion for attorneys’ fees and costs,” Defendants’ counsel explains that she “requested and obtained the billing invoices reflecting the work of Hernandez Laska LLP professionals assigned to this action. These bills reflect all write-offs and discounts provided to Defendants. These bills were created and are maintained by Hernandez Laska LLP in its ordinary course of business.” (Hernandez Decl., ¶ 5, Ex. A.) The billing records show that Ileana Hernandez spent 9.2 hours on this case, for a total billed amount of \$5,980, Thomas Worger spent 51 hours on this case, for a total billed amount of \$25,245, and Constantino Raya spent 10.2 hours on this case, for a total billed amount of \$4,590. (Hernandez Decl., ¶ 14, Ex. A.)

The Court finds that Defendants sufficiently support their request for fees. Given the favorable outcome and the significant number of causes of action Defendants challenged, the requested fees are reasonable. Additionally, the rates sought are supported by each attorney’s experience.

In opposition, Missry challenges

a few billing entries in connection with the motion. She first contends that two time entries for .40 hours, where Raya and Worger had a meeting that is billed as “in connection with drafting portions of the demurrer to complaint and Anti-SLAPP motion,” are improper because “[t]he contemporaneous description establishes that the conference served both motions. Defendants therefore should identify the portion attributable to the special motion to strike or accept a reasonable reduction for the separable demurrer component.” (Opp., 6:13-14.) For multiple-attorney work, Missry “requests targeted scrutiny of entries reflecting internal conferences, successive revisions, or overlapping review. Time should be allowed where the record demonstrates a reasonable and efficient division of responsibility.” (Opp., 7:4-5.) Further, regarding block billing, Missry “requests an entry-specific or measured percentage reduction only where a grouped or materially redacted description prevents meaningful allocation between anti-SLAPP work and separable demurrer, administrative, or other nonrecoverable work.” (Opp., 7:9-10.)

In reply, Defendants assert

that “Plaintiff fails to explain how Defendants’ time entries are excessive, duplicative, or insufficiently documented. Instead, Plaintiff offers only generalized grievances and improperly asks this Court to review the billing records to identify unreasonable billing time entries.” (Reply, 2:9-11.) Defendants assert that “Plaintiff does not dispute the reasonableness of Defendants’ counsel’s hourly rate or the requested cost amount. Plaintiff objects only to a single billing entry dated August 25, 2025, speculatively arguing that Defendants improperly commingled time spent on the anti-SLAPP motion and the separate demurrer without further evidentiary support.” (Reply, 2:14-17.) Defendants contend that Plaintiff’s objection lacks merit because “Defendants’ counsel meticulously audited all billing records and excluded any time spent on the demurrer or unrelated tasks[,] ... Defendants’ counsel redacted numerous entries that involved tasks concerning both motions and their overlapping legal arguments and did not include those fees in the total requested amount[,] ... [and] the August 25 entry is an isolated, unique instance of counsel discussing legal issues that were raised in both motions.” (Reply, 2:17-26.)

Defendants next assert

that “Plaintiff states that time should be allowed where the record demonstrates reasonable and efficient division of responsibility. (Opp. at 7:4.) That is exactly what Defendants have done in the Motion. Because the

record shows a reasonable allocation of tasks, the Court should not be burdened with searching for nonexistent duplicative time entries.” (Reply, 3:11-14.) Finally, Defendants contend that “Plaintiff’s suggestion that Defendants’ counsel submitted block billing entries lacks both factual and evidentiary support. Although Plaintiff requests that this Court find evidence of improper billing practices, she fails to proffer a single example of such an entry.” (Reply, 3:16-18.)

The Court finds that Missry does not identify any unreasonable time entries. The only specific time entry mentioned involved overlapping issues in the demurrer and anti-SLAPP, which would be unreasonable not to award Defendants fees for, as the billed entry reasonably advanced litigation efforts on the anti-SLAPP motion. As Defendants’ declaration and reply state, they audited the fee requests to ensure no duplicative entries existed and there were no entries for the demurrer. Accordingly, the Court finds the requested fees reasonable and grants Defendants’ request in its entirety.

Conclusion

Based on the foregoing, Defendants’ request for attorney fees and costs in the total amount of \$35,985.48, comprising \$35,815 in attorney fees and \$170.48 in costs, is GRANTED.

Missry is ordered to pay within 30 days of the date of this Order.

Defendants are ordered to provide notice of this Order.

DATED: August
13, 2026

Hon. Teresa A.
Beaudet

Judge, Los

